

HEADNOTE

- “1. Review of an order to accept a counterclaim for rate-setting against an intervener (Pool administrator) denied.*
- 2. R. 315.4 RoP entails that an intervener is to be treated as a party, unless otherwise ordered by the Court. This means as a principle that a counterclaim (for rate-setting) may be directed to such intervening party. The more so since Vectis intervened on the side of claimant, Dolby. According to the principle of "equal treatment" (CoA 27 November 2025, UPC_CoA_70/2025 (Strabag), m.n. 16), a counterclaim directed at the party the intervener supports may also be directed at the intervener.*
- 3. The Court may also rely on R. 305 RoP. It makes further sense to include Vectis as a proper party (on the side of Dolby), since it already intervened voluntarily and unopposed and at an early stage of the proceedings, rendering it possible to file a (counter)claim against it.”*

COURT
Court of Appeal Luxembourg

PROCEEDINGS
Infringement action

PATENT
EP3079153

AUDIO DECODING WITH SELECTIVE
POST FILTERING

KEYWORDS

panel review

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addition of a party

Rule 315 Statement in intervention

SUMMARY

The Court of Appeal in Luxembourg ruled on an infringement action. The patent at issue relates to audio decoding with selective post filtering. According to the headnotes of the decision, the court denied an order to accept a counterclaim for rate-setting against an intervener who served as pool administrator. Under the Rules of Procedure, an intervener must be treated as a party unless the court orders otherwise, which means that counterclaims, including those concerning rate-setting, may generally be directed at that intervening party. The court may also apply the Rules of Procedure to treat the intervener as a proper party on the side it supports, particularly where it has already intervened voluntarily and at an early stage, making it appropriate to file counterclaims against it.